

Vishwas Malik v. State of U.P. and Another

Allahabad High Court · Single Judge · 15 July 2024 · 2024:AHC:113658 · APPLICATION U/S 482 No. - 36907 of 2011 · **482 disposed; trial court to decide pending 8.2 time-bar application in accordance with law within 30 days, then proceed**

HEADNOTE

On a section 482 CrPC application to quash a complaint under sections 135/136/138 of the Electricity Act, 2003 as time-barred under clause 8.2 of the U.P. Electricity Supply Code, 2005, where an application dated 29.09.2011 raising that bar remained pending before the trial court, the High Court did not itself decide limitation or quash the prosecution. With the AGA not objecting, it directed the trial court to decide the 29.09.2011 application in accordance with law within 30 days of production of a certified copy of the order, and then to proceed further. The 482 application was disposed of finally. Clause 8.2 was not construed.

FACTUAL SUMMARY

Vishwas Malik was prosecuted in Case No. 784 of 2006 (U.P. Power Corporation v. Vishwas Malik) under sections 135/136/138 of the Electricity Act, 2003, P.S. Nagal, District Saharanpur, before the Special/Additional Sessions Judge, Court No. 5, Saharanpur. Supply was disconnected for alleged theft on 21 July 2006; the department filed the complaint on 20 November 2006. In the 482 application he said a 24 April 2007 order had reduced the demand, he had deposited that sum, and an amendment to clause 8.2 of the U.P. Electricity Supply Code, 2005 required the complaint within 30 days of disconnection, so a filing after about four months was time-barred. He also said he had approached the consumer forum and the complaint was a counter-blast.

He moved the trial court on 29 September 2011 to treat the complaint as time-barred; that application remained pending. He had appeared and obtained interim bail, but the trial court pressed for regular bail and issued a non-bailable warrant. An interim order of 2 January 2012 that no coercive action be taken was extended through listings until the High Court disposed of the 482 application on 15 July 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2

clause 8.2 time-bar of s.135 complaint — left to trial court

QUESTION

Will the High Court, on a section 482 application, itself quash a sections 135/136/138 complaint as time-barred under clause 8.2, or first require the trial court to decide a pending limitation application?

HOLDING

The Court did not quash the complaint and did not decide whether clause 8.2 of the U.P. Electricity Supply Code, 2005 bars a sections 135/136/138 complaint filed more than 30 days after disconnection. Where the applicant's 29.09.2011 application raising that time-bar remained pending, and the AGA had no objection, the 482 application was disposed of by directing the trial court to decide that application in accordance with law within 30 days of production of a certified copy of the order, and then to proceed further. ¶ 1

FLAG Thin disposal. The 30-day-from-disconnection period is the applicant's reading of an amending notification to clause 8.2, recorded in the 02.01.2012 listing order and restated on 15.07.2024; the Court did not verify or construe the clause. The 2011 prayer was to quash Case No. 784 of 2006; the 2024 hearing recast it as a direction to decide the pending application. The source PDF also contains listing/stay-extension orders of 02.01.2012, 12.10.2023, 21.11.2023, 04.01.2024, 13.03.2024, 16.04.2024 and 03.07.2024; the judgment under record is the 15.07.2024 order (neutral citation 2024:AHC:113658).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE COMPLAINT DATED 20.11.2006 IS TIME-BARRED UNDER CLAUSE 8.2 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (ALLEGED 30-DAY PERIOD FROM THE 21.07.2006 DISCONNECTION)

Raised in the 482 petition and in the 29.09.2011 trial-court application; left to the trial court to decide in accordance with law. ¶ 1

NOT DECIDED — WHETHER CASE NO. 784 OF 2006 (SS. 135/136/138 ELECTRICITY ACT, 2003) SHOULD BE QUASHED

Original 482 prayer; not granted or refused. The trial court is to decide the pending time-bar application and then proceed further. ¶ 1

NOT DECIDED — WHETHER DEPOSIT OF THE REDUCED DEMAND PURSUANT TO THE 24.04.2007 ORDER, OR THE CONSUMER-FORUM GRIEVANCE, AFFECTS THE PROSECUTION

Raised in the 02.01.2012 listing order; not reached in the 15.07.2024 disposal. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.